

6	Cervantes v. Goton Tiles, Inc. 2024-01423863	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> Plaintiff Jennifer Cervantes moves for preliminary approval of a class action and PAGA settlement. Plaintiff's counsel states the settlement agreement is attached as Exhibit 1 to counsel's declaration. Robinson Decl. (ROA 62) ¶ 2. Exhibit 1 to counsel's declaration is the proposed class notice. The court has been unable to locate the settlement agreement in plaintiff's motion papers or elsewhere in the court file. Because plaintiff has not submitted a copy of the settlement agreement to the court, the court lacks sufficient information to evaluate the settlement. Plaintiff's motion for preliminary approval is denied without prejudice. Clerk to give notice.
7	Corral v. JMW Cabinets, Inc. 2024-01376239	<u>Plaintiff's Motion for Approval of PAGA Settlement</u> "Because an aggrieved employee's action under the Labor Code Private Attorneys General Act of 2004 functions as a substitute for an action brought by the government itself, a judgment in that action binds all those, including nonparty aggrieved employees, who would be bound by a judgment in an action brought by the government." <i>Arias v. Superior Court</i> (2009) 46 Cal.4th 969, 986. PAGA settlements are subject to trial court review "to determine whether [they are] fair, reasonable, and adequate in view of PAGA's purposes to remediate present labor law violations, deter future ones, and to maximize enforcement of state labor laws." <i>Moniz v. Adecco USA, Inc.</i> (2021) 72 Cal.App.5th 56, 77. The court has reviewed and considered the papers filed in support of plaintiff's motion for approval of a \$100,000 PAGA settlement. The court has the following questions and comments: 1. Were the motion papers served on the LWDA? Plaintiff must file with the court a proof of service identifying the specific documents served on the LWDA, when plaintiff served the documents, and how service was effected. <u>As to the settlement:</u> 2. The "Released Parties" provision in paragraph 1.27 of the settlement agreement is overbroad. It includes ambiguous, unidentified and/or unrelated third parties such as "insurers," "affiliates," "entities (including those entities named as respondents and/or defendants in Plaintiff's LWDA letters or the Action)," "agents, attorneys, administrators, and representatives." 3. When is the aggrieved employees release effective? Settlement Agreement ¶ 5. The court will not require the aggrieved employees to release claims until defendant has fully funded the settlement. 4. The "Released PAGA Claims" provision in paragraph 5 is overbroad. Releases for aggrieved employees other than plaintiff should not release more than the civil penalties

		available under PAGA based on the facts alleged in the operative complaint and the notice letter(s) to the LWDA. The phrase "in the Action" should be removed. 5. Defendant should advise, in a declaration filed with the court, whether, after making reasonable inquiry, and since the time the settlement agreement was executed, it is aware of any class, representative or other collective action in any court that asserts claims similar to those asserted in this action. If any such actions are known to exist, the declaration shall also state the name and case number of any such case and the procedural status of that case, and describe the impact of the settlement on that case. 6. Plaintiff's counsel's attorneys' fees totaling 33 1/3% of the gross settlement amount. Absent unique circumstances, the court is unlikely to approve attorneys' fees in excess of 30% of the gross settlement amount. Plaintiffs' counsel should address in the supplemental filing whether any such unique circumstances exist here. 7. Plaintiff's counsel must submit an invoice substantiating the mediation charge (\$8,250). <u>As to the notice:</u> 8. The notice should be revised as necessary consistent with the above. 9. Section 5 of the notice letter states that if an aggrieved employee believes the PAGA pay periods used to calculate the employee's payment is incorrect, the employee should contact the settlement administrator within 30 days of the date of the notice letter. The settlement agreement does not appear to contain a provision addressing resolution of pay period disputes. How will the settlement administrator address any disputes? 10. The notice letter should provide the URL for case website maintained by the settlement administrator and identify the key case documents (including the order and judgment) that will be posted on the website, and should state that judgment will be posted on the settlement administrator's website for at least 180 days. 11. The italicized paragraph at the bottom of page 4 of the notice letter should be removed. 12. Should the notice letter be provided in any language other than English? If so, a certified copy of the translation should be attached as an exhibit to the proposed order and judgment. <u>As to the proposed order and judgment (ROA 46):</u> 13. The proposed order and judgment should be revised consistent with the above.
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8	De La Cruz v. Laguna Cookie Company Inc. 2024-01381818	<u>Plaintiff's Motion for Preliminary Approval of Class Action and PAGA Settlement</u> The court has reviewed and considered the papers, including the supplemental papers, filed in support of plaintiff's motion for preliminary approval of a \$315,000 class action and PAGA settlement. The court grants the motion as follows: \$2,500 for enhancement award to plaintiff (not to exceed);